

25NNCV06429 25NNCV06429

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 25NNCV06429 Hearing Date: July 31, 2026 Dept: A

TENTATIVE

RULING

JULY 31, 2026

MOTIONS

TO COMPEL RESPONSES

Los Angeles Superior Court

Case # 25NNCV06429

MP: Defendant

Ross Dress for Less, Inc.

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at
or by telephone at (818) 260-8412.

MOTIONS ON CALENDAR:

On April 10, 2026, Ross Dress for Less, Inc. ("Defendant") filed three motions to compel Esthela Garcia's ("Plaintiff") initial responses to: (1) Form Interrogatories ("FROG"), set one; (2) Special Interrogatories ("SROG"), set one; and (3) Request for Production of Documents ("RPD"), set one. On July 24, 2026, Defendant filed Notice of Non-Receipt of Opposition to the three motions. (The oppositions were due by July 20, 2026.) The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response and for a monetary sanction. (C.C.P. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal. App. 3d 902, 905-906.)

Where there has been no timely response to a demand to produce documents, the demanding party may seek an order compelling a response. (C.C.P. § 2031.300(b).) Failure to timely respond waives all objections, including privilege and work product. (C.C.P. § 2031.300(a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

ANALYSIS:

A.

Discussion

On October 16, 2025, Defendant served on Plaintiff the discovery requests, such that responses were due by November 18, 2025. On December 11, 2025, defense counsel emailed Plaintiff's counsel requesting the status of discovery responses. Plaintiff's counsel requested and Defendant granted a two-week extension. On February 13, 2026, Defendant requested responses no later than February 18, 2026. On February 15, 2026, Plaintiff's requested a second two-week extension. On March 16, 2026, Defendant followed-up and Plaintiff's counsel requested a third two-week extension. On March 27, 2026, defense counsel left a voicemail for Plaintiff's counsel regarding the outstanding discovery and Plaintiff's counsel responded they were having difficulty contacting their client and requested a fourth two-week extension. As of the filing of the motions, Defendant states that it has not received Plaintiff's responses.

Defendant's unopposed motions to compel responses to the FROG, SROG, and RPD are granted pursuant to C.C.P. §§ 2030.290 and 2031.300. Plaintiff is ordered to provide verified responses to the discovery requests, without objections, within 30 days of this order.

B.

Sanctions

The Court has discretion to impose a monetary sanction against a party engaging in the misuse of the discovery process, or any attorney advising that conduct. (C.C.P. § 2023.030(a).) Sanctions are only mandatory as against a party who unsuccessfully makes or opposes a motion to compel a response to interrogatories or RPD, unless the Court finds they acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (C.C.P. §§ 2030.290(c) & 2031.300(c).) Regardless, it is customary to grant sanctions where a party has filed a motion to compel, and the other party fails to file an opposition. (C.R.C. Rule 3.1348(a).)

Defendant requests \$1,915 in sanctions against Plaintiff and her attorney per motion (= [4 hours for the motion + 2 anticipated hours to

review the opposition, draft the reply, and attend the hearing at \$265/hour] + \$60 in filing fees). The requests are granted in the reasonable amount of \$530 in attorney's fees and \$60 in filing fees (or \$590) per motion. The Court finds that this amount is reasonable as these are straightforward, unopposed motions to compel initial responses and are partially duplicative in nature. Based on the meet and confer efforts, the Court imposes sanctions as against Plaintiff only and not against Plaintiff's counsel.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant Ross Dress for Less, Inc.'s Motions to Compel Responses and Motion to Deem the RFAs Admitted came on regularly for hearing on July 31, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTIONS TO COMPEL PLAINTIFF'S RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUESTS FOR PRODUCTION OF DOCUMENTS ARE GRANTED. RESPONSES ARE TO BE MADE WITHIN 30 DAYS.

Plaintiff IS ordered to pay \$1,590 in monetary sanctions to Defendant, by and through counsel, within 30 days of this order. NO SANCTIONS ARE IMPOSED AGAINST PLAINTIFF'S COUNSEL.

DEFENDANT TO PROVIDE NOTICE.

IT IS SO ORDERED.